

CCP § 473(c)(2) does not apply. Given the history of monetary sanctions in this matter that have not been paid by Plaintiffs and the long history of noncompliance, the Court will set the reasonable legal fees and costs and require payment by Mr. Berg (not Plaintiffs) prior to setting aside the judgment and resetting the Motion to Terminate. When the hearing is set, the Court will allow Plaintiffs to file an Opposition and Defendant to file a Reply. The Court will then hear the Motion to Terminate Case on the merits.

The Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b) is **GRANTED**. Relief is conditioned on compensation to Defendant for legal fees and costs reasonably incurred in an amount to be determined by the Court. Plaintiffs did not submit a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are ordered to submit an order consistent with the Court's ruling.

An appearance by both counsel is necessary in order to determine when Defendant will be able to submit an affidavit regarding legal fees and costs incurred after May 11, 2026. Once that sum has been determined and paid by Mr. Berg, the Court will set aside the Judgment and set the Motion to Terminate Case for hearing.

JORDAN, II VS. SITE WORK SOLUTIONS

CASE NUMBER: 25CV-0209057

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Charles David Jordan II and Counsel JS Abrams Law on July 22, 2026 for failure to timely serve the Complaint in violation of CRC 3.110(b). Counsel filed a declaration explaining the reason for the delay. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of service.

Tentative Ruling on Motion to be Relieved as Counsel: Navid Kanani of JS Abrams Law PC moves to be relieved as counsel for Plaintiff Charles David Jordan II.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case. CRC 3.1362(d). "The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." CRC 3.1362(d)(2). Counsel has not made reasonable efforts to locate a current address for Plaintiff. Additionally, there is no proof of service for the proposed Order, which is required to be served on Plaintiff.

The Motion to be Relieved as Counsel is **DENIED** without prejudice for lack of proper notice to Plaintiff. The Court is unable to modify the proposed Order submitted. Plaintiff's counsel is ordered to submit an Order consistent with the Court's ruling.

ROWEN VS. NORTHERN VALLEY CATHOLIC SOCIAL SERVICE, INC.

CASE NUMBER: 25CV-0209519

Tentative Ruling on Motion for Stay of Proceedings: Defendant Northern Valley Catholic Social Services, Inc. moves to stay these proceedings pending the outcome of *Thompson vs. Northern Valley Catholic Social Services, Inc.*, Butte County Case No. 24CV02468. Plaintiff Robert Rowen received proper notice of the motion and did not file an Opposition.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Complaint filed July 24, 2024 and the Second Amended Complaint filed in *Thompson vs. Northern Valley Catholic Social Services, Inc.*, Butte County Case No. 24CV02468. Both requests are granted pursuant to Evid. Code §§ 452(d) and 453.